

HOUSE No. 4043

The Commonwealth of Massachusetts

PRESENTED BY:

Manny Cruz and Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to copay assistance for medications.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/16/2025</i>

HOUSE No. 4043

By Representative Cruz of Salem and Senator Lovely, a joint petition (accompanied by bill, House, No. 4043) of Manny Cruz relative to copay assistance for medications. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to copay assistance for medications.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 175H of the General Laws is hereby amended by inserting after section 3 the
2 following section:-

3 Section 3A. (a) For the purposes of this section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Copay assistance program”, a type of financial assistance program that helps patients
6 pay for their out-of-pocket costs related to healthcare services.

7 “Department”, the department of public health pursuant to chapter 111.

8 (b) Notwithstanding any general or special law to the contrary, a copay assistance
9 program offered by manufacturers of both branded and generic medications shall be permitted
10 for all residents of the commonwealth, subject to the following conditions:

11 (1) Copay assistance programs shall be made available to all patients prescribed the
12 medication, regardless of the insurance status of the patient, unless otherwise prohibited by
13 federal law.

14 (2) Manufacturers offering copay assistance programs shall notify the department the
15 availability of such programs, including detailed program descriptions and eligibility criteria.

16 (3) The department shall ensure that information regarding copay assistance programs are
17 readily available to the public and healthcare providers.

18 (4) Manufacturers of generic medications and their suppliers shall not be subject to any
19 fines or penalties for participating in the copay assistance program.